

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DIRECTING STAFF TO PROCEED WITH THE PROCESS OF PRESENTING TO THE GOVERNING BODY OF THE CITY OF CHEYENNE FOR CONSIDERATION AN ORDINANCE ADOPTING IMPACT FEES ON NEW DEVELOPMENT IN THE CITY OF CHEYENNE."

WHEREAS, PlanCheyenne, the Comprehensive Plan for the Cheyenne Urban Area, adopted by the Governing Body of the City of Cheyenne in 2006 and updated in 2014, recommends in Principle 7.2 that the Cheyenne area “provide adequate public facilities and services for current and future residents in a fiscally responsible manner”; and

WHEREAS, Policy 7.5.A in PlanCheyenne recommends that the Cheyenne area “continue to identify and provide funding for services and amenities that contribute to quality of life and economic vitality of the community, including parks and recreation, cultural and library facilities, and other services”; and

WHEREAS, the protection of the health, safety, and general welfare of the citizens of the City of Cheyenne requires providing infrastructure improvements, facilities, and equipment to accommodate continuing growth within the City; and

WHEREAS, pursuant to City Contract No. 6141, dated March 24, 2014, the Governing Body of the City of Cheyenne retained TischlerBise to produce a study determining impact fees on new development that would fund a portion of the infrastructure improvements, facilities, and equipment that are necessitated by new development; and

WHEREAS, TischlerBise has completed the study and has produced impact fee calculations, which are similar to the preliminary calculations which were presented to the Governing Body at a work session on February 19, 2015; and

WHEREAS, proceeding with the completion of the work by TischlerBise regarding impact fees will cost approximately \$10,000, the expenditure of which has been approved by the Governing Body of the City of Cheyenne pursuant to City Contract No. 6141; and

WHEREAS, proceeding with the process of adopting impact fees on new development in the City of Cheyenne will also require a significant investment of staff time to, among other things, effect changes to the City Code of the City of Cheyenne necessary to adopt such impact fees; and

WHEREAS, the Governing Body of the City of Cheyenne has considered the additional costs in time and expenses associated with the adoption of impact fees on new development in the City of Cheyenne, and has determined that staff should proceed with the process leading to consideration and a final decision by the Governing Body regarding the adoption of impact fees on new development in the City of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is authorized by the Governing Body to direct staff to proceed with the process of presenting to the Governing Body of the City of Cheyenne for consideration an ordinance adopting impact fees on new development in the City of Cheyenne.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2015.

RICHARD L. KAYSEN, MAYOR

SEAL:
ATTEST:

CAROL INTLEKOFER, CITY CLERK